RadAssist IP and Clinical Advisor Agreement: Outline for Attorney Review

> **PENDING LAWYER REVIEW.** Rick chose Option A (true IP royalty, no sales commissions) on 2026-11-03. Nothing here is final until a Texas-licensed healthcare attorney has reviewed it.

Why this structure: per `private/SHERLOCK-ROYALTY-LAW-2026-11-03.md`, per-sale commissions paid to healthcare providers (the earlier 30% on centers Luis sells and 10% referral fees) are moderate-to-high risk under Tex. Occ. Code 102.001 (patient solicitation, all payers) and the federal Anti-Kickback Statute; a fixed, fair-market-value royalty on all revenue for a documented IP contribution is the low-to-moderate-risk shape.

Not legal advice; for review by a Texas-licensed attorney.

PRIVATE. Rick only. Term-sheet outline, not a contract. Prepared 2026-11-01; compensation terms revised 2026-11-03.

1. Parties

- **RGF Global Ventures LLC** (Nevada LLC, registered in Texas; DBA Elovar Technology Solutions), owner of RadAssist ("RGF").
- **Dr. Luis Ramos** ("Advisor"). Confirm exact legal name and spelling with Luis before drafting.

2. Ownership of software and IP

- RGF owns all RadAssist software, code, data models, templates, modules, documentation, and related IP.
- This includes modules built from Advisor's clinical input (for example, spine, brain, cardiac CTA / CAD-RADS).
- Nothing in the agreement grants Advisor any ownership, equity, or license except as stated in section 6.

3. Advisor's role

- Clinical advisor and design partner: reviews templates, guideline display, report structure, and module content; pilots new features; gives feedback.
- Independent contractor relationship. No authority to bind RGF.

4. Assignment of contributions

- Advisor assigns to RGF all rights in template and content contributions made for RadAssist (or, if the attorney prefers, grants RGF an exclusive, perpetual, royalty-free, worldwide license).
- Advisor confirms contributions do not include another employer's or practice's confidential material or patient data.
- Advisor keeps his general medical knowledge and skill.

5. Compensation: IP royalty (Option A, Rick 2026-11-03, pending lawyer review)

- **What it pays for:** Advisor's design and IP contribution to RadAssist (workflow design, templates, grading schema, impression ordering), documented in the assignment under section 4. It is not a sales commission.
- **Rate:** 15% of net license revenue on **all** RadAssist licenses, regardless of who sells them or whether Advisor touched the sale. Recurring for the term.
- **Fixed in advance at fair market value.** Set in writing before any sale; it does not rise with sales Advisor personally generates. Attorney to confirm the rate is supportable as FMV for this kind of contribution (a third-party valuation is an option).
- **Base:** net revenue RGF actually receives from RadAssist licenses (define net: after refunds, taxes, payment fees, reseller costs). License list price $2,400/yr ($200/mo); founding-center floor $1,800/yr.
- **Excludes:** consulting fees, and build or integration services, unless agreed.
- **Term:** a set term, proposed 5 years from the effective date (attorney to confirm), not open-ended.
- **No per-sale payments to anyone.** No referral or finder fees are paid to Advisor or to any other provider or center owner.
- **Future major modules:** co-design of a new major module is covered by a separate written agreement at the time, not folded into this royalty.
- Payment quarterly, with a simple statement. Audit right limited to once a year.

6. Advisor's own use: reference-site agreement

- Free license at Advisor's own center (Rick, 2026-11-03), for the term, documented as a written **reference-site agreement** with real obligations on the center's side (structured feedback, case studies, permission to name the site), so it reads as consideration rather than a gift.
- Center license terms are otherwise a separate agreement between RGF and the center.

7. Confidentiality

- Mutual. Covers RadAssist code, roadmap, pricing, customers, and RGF business plans; and Advisor's practice information.
- Survives termination for [__] years; trade secrets indefinitely.

8. Clinical responsibility

- The physician remains solely responsible for every report, diagnosis, and clinical decision.
- RadAssist is a reporting and decision-support aid. It does not practice medicine or replace physician judgment.
- Advisor gives no clinical warranty to third-party buyers. RGF does not hold itself out as providing medical advice.

9. No partnership

- No partnership, joint venture, employment, or agency is created. No equity unless granted in a separate written document.

10. Non-solicit and non-compete (OPTIONAL, attorney to advise)

- Possible non-solicit of RGF customers and staff during the term plus [__] months.
- Possible narrow non-compete on building a competing structured-reporting product.
- Flag: Texas enforces non-competes only if ancillary to an enforceable agreement and reasonable in time, area, and scope, with special rules for physicians. Attorney to decide whether to include.

11. Term and termination

- Initial term [__] years, renewable.
- Either party may end with [__] days' written notice; immediate for material breach.
- **Survival:** royalties on modules Advisor contributed continue for the royalty term after termination (attorney to decide if termination for cause ends them). Ownership, assignment, confidentiality, and clinical-responsibility terms survive.

12. HIPAA / BAA

- Today RadAssist is designed to store no PHI, using synthetic or de-identified examples.
- If real patient data is ever handled (testing, piloting, PACS integration), a Business Associate Agreement must be signed first with the covered entity, and data handling rules added.
- Do not sign a BAA while RGF is outside the business-associate definition; attorney to confirm.

13. FDA regulatory flag

- Clinical decision features, and especially the future image-reading AI Luis described (auto-filling findings from axial and sagittal images), may be regulated by FDA as Software as a Medical Device.
- The attorney (or a regulatory consultant) should advise before any third-party sale, and before any marketing that claims diagnostic function.
- The agreement should not promise Advisor revenue from features that cannot be sold without clearance.

14. Governing law

- Texas law. Venue: El Paso County, Texas [confirm].

Open questions for the attorney

1. Assignment or exclusive license for Advisor's contributions: which better protects RGF for a future sale or investor?
2. Royalty structure: percentage of net revenue, flat per-license fee, or capped total? How to define net revenue cleanly?
3. Should royalties survive termination for cause?
4. Is a non-compete enforceable or worth it for a physician advisor in Texas? Non-solicit only?

5. Does the Texas Medical Board or anti-kickback / Stark analysis apply if Advisor refers or recommends RadAssist to centers that buy it?
6. FDA: which current features (guideline display, structured templates, scoring like CAD-RADS) fall under the clinical decision support exemption, and which would not?
7. Does Advisor's role at the new imaging center (where Rick may also be a paid technology lead) create a conflict that needs disclosure?
8. Insurance: should RGF carry tech E&O / product liability before third-party sales?
9. Does Advisor's employer or practice agreement claim any rights in his contributions?

Addendum 2026-11-03 (afternoon): Option A chosen, pending lawyer review

Replaces the morning addendum (30% on centers Luis sells, 10% referral fees), which is withdrawn. - **Ownership:** RGF (Rick) owns RadAssist outright. Luis uses it free at his center under a reference-site agreement (section 6). - **Luis:** 15% of net license revenue on all RadAssist licenses, whoever sells, recurring, for his design and IP contribution; proposed 5-year term; fixed in advance at fair market value (section 5). - **Annual center license:** list $2,400/yr ($200/mo). Founding-center floor $1,800/yr for early adopters. The royalty is calculated on net revenue from this number. - **Fernando Escarzaga and Jesse Martinez: no** per-sale referral fees and no royalty for now. They may earn in later only for real, documented design work, under a written agreement approved by counsel. - **Future major modules:** any co-design with Luis gets its own written agreement. - **Not in the Thursday pitch.** Discuss privately with Luis only after the lawyer's review; nothing to Fernando or Jesse. - **Attorney:** anti-kickback (federal AKS) and Tex. Occ. Code 102.001 review before signing; FMV support for the 15% rate; confirm the 5-year term. See the open questions above and the Sherlock memo's "Questions to bring to the lawyer."